

Based upon GM's specific challenges to the billing records, the following are adjusted:

Work	Hours billed	New Reduced Hours	Hourly Rate	Reduction
Review and respond to discovery	10.8 (NTA)	6.0	\$550	\$2,640
Drafting template discovery to 2 defendants	9.9 (NTA)	5.0	\$550	\$2,695
Draft template meet and confer letter	0.9 (WL)	0.5	\$450	\$180
Draft motion to compel PMQ deposition	5.0 (WL)	3.0	\$450	\$900
Draft motion to compel compliance with third party subpoena	5.6 (WL)	3.0	\$450	\$1,170
			Total:	\$7,585

Accordingly, the total stated lodestar is discounted by \$16,053, which results in a reduced fee award of **\$32,785 (\$48,688-[\$7,585+\$2,010+\$6,458])**.

As to the request for a multiplier, the purpose of the lodestar enhancement is "to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Id.* at 1138.) In the present case, there is no reason for an enhancement. This was not a complicated case, there was no exceptional quality of work, and the alleged risk due to counsel's contingency fee should already be accounted for in counsel's hourly rate.

Plaintiff's Motion for Attorney's Fees GRANTED in part.

\$21,570 is awarded to Wirtz Law + \$11,215 is awarded to Norman Taylor and Associates for a total award of \$32,785 for fees.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2400948	MARQUEZ VS GENERAL MOTORS, LLC	MOTION TO TAX COSTS GENERAL MOTORS, LLC

Tentative Ruling: Plaintiffs argue that because the motion does not include a notice of motion, it is defective pursuant to CRC 3.1110 and 3.1112, and should therefore be denied. CRC 3.1110(a) states that "[a] notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order,"

and must include the date, time, and location of the hearing, the nature of the motion, the date the action was filed, and the trial date, if set. CRC 3.1112 states that any moving papers must contain a notice of the hearing, the motion, and a memorandum in support of the motion. While Plaintiffs are correct that GM did not include a separate notice of this motion, the motion itself describes the nature and grounds for the relief sought; provides the date, time, and location of the hearing; and includes a memorandum supporting the motion.

Under C.C.P. §1032(b), unless otherwise provided, “a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” C.C.P. § 1033.5(a) contains a list of items specifically allowed as recoverable costs, and § 1033.5(b) contains a list of items that “are not allowable as costs, except when expressly authorized by law.” An item neither specifically allowable under subdivision (a) nor prohibited under subdivision (b) may be allowed or denied in the discretion of the court if certain requirements are satisfied. (C.C.P. § 1033.5(c)(4).) In particular, the item “shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and “shall be reasonable in amount.” (C.C.P. § 1033.5(c)(2) and (3).) Objection to any item or items on the cost memorandum may be made by filing and serving a noticed motion to tax cost. (C.C.P. § 1034; CRC 3.1700 (b)(1).)

If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-774.) “A verified memorandum of costs is prima facie evidence of their propriety,” and the opposing party has the burden to demonstrate that they are not proper. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) A verified memorandum does not require copies of bills, invoices or other documentation to be attached. (*Id.* at 1267.) If the items are properly objected to, they are put in issue, and the burden of proof is on the party claiming them as costs. (*Ladas, supra*, 19 Cal.App.4th at 774.)

GM objects to the \$60 filing fee for Plaintiffs’ motion for attorney’s fees, arguing that no such motion has been filed. However, Plaintiffs filed their motion for attorney’s fees on April 3, 2026, and provide evidence they incurred the filing fee for that motion. (Decl. of Amy R. Rotman [“Rotman Decl.”] at ¶ 5, Ex. 2.)

GM argues that the fees sought by Plaintiffs for service of a subpoena on Allen Gwynn Chevrolet and a witness fee for responding because such fees incurred related to a non-party dealer were unnecessary. Plaintiffs present evidence that the amounts were actually incurred, and that the subpoena sought documents relevant to Plaintiffs’ claims. (Rotman Decl. at ¶¶ 6-8, Exs. 3-5.) Accordingly, Plaintiffs have established that this is a recoverable cost.

GM objects to the \$625 sought by Plaintiffs as court reporter fees for a hearing on their motion for attorney’s fees on the ground that there has been no hearing, so such fees were not incurred. In response, Plaintiffs provide an invoice from a different case for a court reporter they hired to report a motion for attorney’s fees. (Rotman Decl. at ¶ 9, Ex. 6.) However, they present no evidence this is a cost actually and reasonably incurred in the present case.

GM moves to tax the electronic filing fees sought by Plaintiffs totaling \$651.26 (\$468 from Witz Law and \$183.26 from Norman Taylor & Associates), arguing they were not reasonable and necessary. Pursuant to C.C.P. § 1033.5(a)(14), “[f]ees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents” are recoverable.

Pursuant to Local Rule 3118, this court requires that “parties represented by counsel must file documents electronically” in all limited and unlimited civil actions. Thus, Plaintiffs’ electronic filing fees are recoverable. However, the invoices provided by Plaintiffs to support the recovery of these fees show that \$180 of these fees were for filing fees, already recovered elsewhere. (See, Rotman Decl. at ¶ 5, Ex. 7.) Additionally, \$194.45 was incurred not for electronic filing, but for “Info Track Fees” [*ibid.*], which are not automatically recoverable. As Plaintiffs provide no evidence showing how these fees were reasonably necessary to the litigation, they fail to establish they are recoverable.

GM also challenges the \$150 in jury fees paid by Plaintiffs. Jury fees are proper on their face. (See C.C.P. § 1033.5(a)(1).) Although the present case did not go to trial, Plaintiffs were required to pay the jury fees in order to preserve the right to a jury trial in event the case did not settle. The jury fee must be paid on or before the date scheduled for the initial case management conference. (C.C.P. § 631(c).)

Fees for legal research are not recoverable under California law absent an agreement of the parties or statutory authority. (*Ladas, supra*, 19 Cal.App.4th at 776.) Such costs are part of attorney overhead and are not recoverable. Further, Plaintiffs fail to show that these fees were reasonable and necessary to the litigation.

Finally, GM challenges the \$680 sought by Plaintiffs for mediation fees. However, mediation fees are recoverable in the court’s discretion. (*Anthony v. Li* (2020) 47 Cal.App.5th 816, 824; C.C.P. 1033.5 (c)(4).) As Plaintiffs presents evidence those fees were incurred [Rotman Decl., Ex. 8], they are recoverable.

Defendant’s Motion to Tax Costs GRANTED in part.

The following the reductions in costs: \$374.45 electronic fees + \$625 court reporter fees + \$49.43 legal research for a total tax of \$1,048.88.

Costs awarded to Plaintiff in the amount of \$3,177.83 (\$4,226.71-1,048.88).

3.

CASE #	CASE NAME	HEARING NAME
CVPS2502070	VAN WINKLE VS COHEN	MOTION FOR SUMMARY JUDGMENT ON 1ST AMENDED COMPLAINT FOR OTHER PERSONAL INJURY/PROPERTY DAMAGE/WRONGFUL DEATH TORT (OVER \$35,000) OF ADRIAN VAN WINKLE BY MELISSA COHEN

Tentative Ruling: No tentative ruling. Motion is continued to 9.01.26.

If the opposing party shows by declaration that essential evidence “may exist but cannot, for reasons stated, be presented, the court shall deny the motion” or continue it for a reasonable period, or “make any other order as may be just.” (CCP § 437c(h); see *Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 395.) Thus, a continuance (normally a matter within the court’s discretion) is “virtually mandated” where the nonmoving party makes the requisite showing. The party need not show that essential evidence *does* exist, but only that it *may* exist. (*Dee v. Vintage Petroleum, Inc.* (2003) 106 CA4th 30, 34 (emphasis added).) To be entitled to a continuance, the party opposing the motion for